

EVICTIION DEFENSE PACKET

Prepared for: John Doe

Date: September 21, 2026

Case: Sandia Rental Group, LLC v. John Doe

Case No: D-202-CV-2024-01234

County: Bernalillo, NM

DOCUMENTS IN THIS PACKET

Document 1: Answer to Eviction (FILE THIS) — Official court answer form — file with the court

Document 2: Fee Waiver Application (FILE THIS) — Application to waive court filing fees (In Forma Pauperis)

Document 3: Emergency Action Plan — What to do today — step-by-step 24-hour action plan

Document 4: Eviction Process Timeline — Understand the entire eviction process from notice to judgment

Document 5: Your Defenses Explained — Plain-English guide to every legal defense on your Answer form

Document 6: Evidence Gathering Guide — What to collect and how to organize it for court

Document 7: Income & Expense Worksheet — For fee waivers and rental assistance applications

Document 8: Filing Checklist — Step-by-step instructions to file your Answer with the court

Document 9: Court Hearing Checklist — What to bring and what to expect at your hearing

Document 10: Hearing Script — What to say to the judge — personalized for your case

Document 11: Rental Assistance Resources — Local organizations that can help with rent and housing

Document 12: Demand Letter to Landlord — Formal written demand for repairs — critical for building your case

Document 13: Motion to Determine Rent — Court motion to dispute the amount of rent claimed

Document 14: Payment Plan Letter — Formal request to your landlord to set up a payment plan

Document 15: Hardship Letter — Request for more time due to financial hardship

Document 16: Motion for Hearing — Formal request to the court to schedule your hearing

Document 17: Motion of Continuance — Request to reschedule your hearing to a later date

Document 18: Emergency Motion to Stay Eviction — Emergency request to pause eviction proceedings (pre-judgment)

Document 19: Emergency Motion to Stay Writ of Restitution — Emergency request to stop lockout (post-judgment)

Document 20: Notice of Automatic Stay — Bankruptcy — Federal bankruptcy filing notice — stops all proceedings under 11 U.S.C. § 362

URGENT — READ THIS FIRST

1. Your eviction summons has a DEADLINE. Find it on your court papers NOW. Mark it on your calendar.
2. Sign and file your Answer form (separate PDF) BEFORE the deadline.
3. If you can't afford the filing fee, submit the fee waiver form (also a separate PDF) at the same time.
4. Keep a stamped copy of everything you file with the court.
5. Bring this entire packet to your court hearing.

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